

TENTATIVE RULING

Case: **Whitehead v. FCA US, LLC, et al.**
Case No. CV2025-0245

Hearing Date: **April 7, 2026** **Department Eleven** **9:00 a.m.**

The Court reminds defendant FCA US, LLC, of the memorandum page length limitations. (Cal. Rules of Court, rule 3.1113(d) [stating that “no opening or responding memorandum may exceed 15 pages”].)/“[n]o reply or closing memorandum may exceed 10 pages.”].) In the future, the Court may decline to consider any argument or legal authority found in pages exceeding the maximum permitted number of pages.

The Court notes that defendant failed to properly meet and confer “in person or by telephone, or by video conference” prior to the filing of this motion for judgment on the pleadings. (Code Civ. Proc., § 439; Kita Decl., ¶¶ 4 – 8, Exhibits. B, C.) However, the Court may not deny a motion for judgment on the pleadings for failure to meet and confer. (Code Civ. Proc., § 439, subd. (a)(4); see *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.)

The Court declines to consider new arguments or facts raised by defendant in its reply brief. New arguments may not be raised for the first time in a reply brief. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited].)

The Court rules on defendant’s motion for judgment on the pleadings, as follows:

- Defendant’s motion as to the first and second causes of actions [brought pursuant to Civil Code section 1793.2] on the ground that these causes of action fail to state sufficient facts to constitute a cause of action pursuant to the Song-Beverly Consumer Warranty Act is **DENIED**. (Code Civ. Proc., § 438.) The Court finds that the allegations of the complaint support that the vehicle at issue was accompanied by a manufacturer’s new car warranty at the time of purchase. (Civ. Code, §§ 1795.5, subd. (d), 1793.22; see *Bank of New York Mellon v. Citibank, N.A.* (2017) 8 Cal.App.5th 935, 952 [all reasonable inferences are drawn in favor of the plaintiff]; Compl., ¶¶ 7, 8, Exhibit A.)
- Defendant’s motion as to the first and second causes of actions [brought pursuant to Civil Code section 1793.2] on the ground that these causes of action are time-barred by the statute of limitations found in Code of Civil Procedure section 871.21 is **DENIED**. (Code Civ. Proc., § 438; see *Bell v. Bank of California* (1908) 153 Cal. 234, 245.) The Court finds that defendant fails to provide any legal authority that the new statute of limitations in section 871.21 applies retroactively. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].) Furthermore, regardless of the applicable statute of limitations, given that the complaint fails to allege “the date of original delivery” of the

vehicle at issue, the Court cannot make a determination as to when the statute began to run. (Code Civ. Proc, § 871.1, subd. (b); see generally Compl.)

- Defendant's motion as to the third cause of action [brought pursuant to Civil Code section 1793.2(a)(3)] on the ground that it fails to state sufficient facts to constitute a cause of action is **DENIED**. (Code Civ. Proc. § 438.) The Court finds that defendant fails to provide any legal authority setting forth the requisite elements of this cause of action, specifically that a plaintiff must allege facts setting forth a vehicle's service and repair history. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc, supra*, 197 Cal.App.4th at p. 934; *Hood, supra*, 43 Cal.App.5th at pp. 73 – 74.) Further, based on the plain language of section 1793.2(a)(3), the Court finds that the complaint states facts sufficient to constitute this cause of action. (See *Bank of New York Mellon, supra*, 8 Cal.App.5th at p. 952; see also *Semole v. Sansoucie* (1972) 28 Cal.App.3d 714, 719; Compl., ¶¶ 27, 40, 51.)
- Defendant's motion as to the fourth cause of action for breach of implied warranty on the ground that it fails to state sufficient facts to constitute a cause of action is **DENIED**. (Code Civ. Proc., § 438.) Defendant fails to provide any legal argument or authority on this issue in its memorandum of points and authorities. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc, supra*, 197 Cal.App.4th at p. 934; *Hood, supra*, 43 Cal.App.5th at pp. 73 – 74.)
- Defendant's motion as to the fourth cause of action for breach of implied warranty on the ground that it is time-barred by the four-year statute of limitations is **DENIED**. (Code Civ. Proc., § 438); see *Bell, supra*, 153 Cal. at p., 245.) While the Court finds that a cause of action based on a latent defect has a limited prospective existence beyond the date of sale, no legal authority has been provided setting forth how the Court determines the date the statute of limitations begins to run when a latent defect is alleged. (*Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495; see *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1303-1304, 1309 ["The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale."].)
- Defendant's motion as to the fifth cause of action for negligent repair on the ground that it fails to state sufficient facts to constitute a cause of action [against defendant Hoblit Chrysler Dodge Jeep Ram] is **DENIED**. (Code Civ. Proc., § 438.) The Court finds that the complaint states facts sufficient to constitute this cause of action. (See *Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917-918; *Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 155 [it is sufficient to allege negligence in general terms, specifying the particular act alleged to have been negligently done]; Compl., ¶¶ 59 – 62.)
- Defendant's motion as to the sixth cause of action for fraudulent inducement – concealment on the ground that it fails to state sufficient facts to constitute a cause of action is **DENIED**. (Code Civ. Proc., § 438.) The Court finds that the complaint states facts sufficient to constitute this cause of action. (*Jones v. ConocoPhillips Co.* (2011) 198 Cal.App.4th 1187, 1198; *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844; *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.*

(2009) 171 Cal.App.4th 1356, 1382, 1384; *Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 217; Compl. ¶¶ 16, 18 – 27, 64 – 71.)

- Defendant's request to strike the punitive damages claim from the complaint is **DENIED**. (Code Civ. Proc., § 438.) Code of Civil Procedure section 438 does not provide the Court with the authority to grant the relief requested. (Code Civ. Proc., § 438, subd. (c)(1)(B).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.